BRENDAN NGEHSI NEWANFORBI

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CONFIDENTIAL SETTLEMENT COMMUNICATION
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June 1, 2026

VIA CERTIFIED U.S. MAIL (RETURN RECEIPT REQUESTED), ELECTRONIC MAIL, AND PERSONAL SERVICE ON REGISTERED AGENT

Eva Rigamonti, Esq.
Executive Vice President & Chief Legal Officer
PILOT TRAVEL CENTERS LLC
Attn: Legal Department
5508 Lonas Drive
Knoxville, TN 37909
E-mail: amber.peters@pilottravelcenters.com
E-mail (cc): backgroundcheck@pilottravelcenters.com

CT CORPORATION SYSTEM
Registered Agent for Service of Process for
PILOT TRAVEL CENTERS LLC in the State of California
(per California Secretary of State, Business Entity Records)

Re: <u>Pre-Filing Demand for Settlement -- Newanforbi v. Pilot Travel Centers LLC</u>

Unlawful Use of California Sex Offender Registry Information for Employment in Violation of Cal. Penal Code § 290.46(j); Wrongful Termination; FCRA / ICRAA Violations; Demand for $475,000.00 and Injunctive Relief

Pilot Employee ID: 573787 | Checkr Report ID: 43f3d4df15540eaf0ba009f3 | Adverse Action Date: December 30, 2025

Dear Ms. Rigamonti:

I write, pro per, to demand pre-litigation settlement of the claims described herein arising from Pilot Travel Centers LLC's ("Pilot" or the "Company") unlawful termination of my employment based solely on my registration in the California Sex Offender Registry. Pilot's own written Post-Adverse Action Notice of December 30, 2025 is an unqualified admission that the Company used Megan's Law registry information to take adverse employment action against me -- the precise conduct that California Penal Code section 290.46, subdivision (j)(2)(E), categorically prohibits.

A complete **Draft Complaint for Damages**, prepared for filing in the Superior Court of California, County of San Joaquin, is enclosed as **Exhibit A**. The Draft Complaint asserts seven causes of action, names Pilot Travel Centers LLC as the defendant, demands trial by jury, and is in final form. I will file and serve the Complaint, together with a contemporaneous press release summarizing the documentary record, on the deadline set forth in Section IX below absent a satisfactory settlement.

I. THE FACTS ARE DOCUMENTARY AND UNDISPUTED

This case will not turn on credibility. Every material fact is established by Pilot's own writings, Pilot's own HR system entries, Pilot's own background-check vendor's report, and Pilot's own post-adverse action notice. The complete documentary chain is in my possession and attached to the Draft Complaint:

- **December 10, 2025:** Pilot, by its authorized representative Chris W. Kiley (Employee No. 7005), extended me a written offer of employment for the position of Guest Services Leader at $24.00/hour, with a $500 sign-on bonus, comprehensive benefits, and an anticipated start date of December 15, 2025.
- **December 15, 2025:** Pilot issued Employee ID 573787, formally added me to its HR system, assigned me to PTC Lodi, CA, Retail Travel Center 617, and welcomed me to "the Pilot family." I commenced active employment.
- **Dec. 15, 2025 - Jan. 23, 2026:** I worked regular shifts at the Lodi Travel Center and received five paychecks from Pilot totaling approximately $2,673.02 in gross wages, each posted to my Valley Strong Credit Union account as "Salary/Regular Income from Pilot Flying J."
- **December 23, 2025:** Checkr, Inc., Pilot's background check vendor, completed Report ID 43f3d4df15540eaf0ba009f3. The report returned a status of "Consider" -- not disqualifying. Every county criminal search (San Joaquin, CA; Washoe, NV; Santa Clara, CA; Sheridan, WY) returned **"Clear."** The Global Watchlist returned **"Clear."** The only flag was a single entry in the **CA Sex Offender Registry**.
- **December 30, 2025, 5:10 p.m.:** Pilot, through its *backgroundcheck@pilottravelcenters.com* address, sent me a "Post-adverse action notice" terminating me. The notice identified the basis for the adverse action as **one single item**:

“REGISTRATION IN CA SEX OFFENDER REGISTRY”

Pilot's notice did not identify any criminal conviction. Did not identify any court record. Did not allege any job-related safety concern. Did not invoke the "protect a person at risk" exception. Cited one item, in capital letters, and one item only.

II. THE LAW IS UNAMBIGUOUS

California Penal Code section 290.46, subdivision (j), provides in pertinent part:

> *“(1) A person is authorized to use information disclosed pursuant to this section only to protect a person at risk.*
>
> *(2) Except as authorized under paragraph (1) or any other provision of law, use of any information that is disclosed pursuant to this section for purposes relating to ... (E)* ***Employment*** *... is* ***prohibited****.”*

The statute is categorical. It is not a balancing test. It is not a "consider all factors" provision. It contains exactly one narrow exception -- the "protect a person at risk" exception -- which by its terms requires an identified individual exposed to a specific risk of a sex offense in the context of the particular job. A retail travel-center cashier position does not qualify, and Pilot's adverse action notice

does not even purport to invoke the exception.

Pilot's own consumer-reporting vendor, Checkr, included the mandatory California statutory disclaimer directly on the face of the report. **Pilot was warned, in writing, by its own vendor, of the very statute the Company proceeded to violate.**

III. THE STATUTORY REMEDIES ARE EXTRAORDINARY

Penal Code section 290.46 imposes uniquely punitive consequences for the violation Pilot has committed:

- **Treble actual damages.** § 290.46(l) -- every dollar of lost wages, lost benefits, and consequential economic harm is multiplied by three.
- **Civil penalty of $10,000 to $25,000 per violation.** § 290.46(k) -- a separate, statutory penalty independent of actual damages.
- **Mandatory attorney fees and costs.** § 290.46(l) -- recoverable by the prevailing plaintiff as a matter of right.
- **Wrongful termination tort damages.** Common-law *Tameny* claim: compensatory damages, non-economic damages, and punitive damages on a willful, oppressive, malicious violation.
- **FCRA statutory and punitive damages.** 15 U.S.C. §§ 1681n, 1681o -- $100 to $1,000 per violation, plus punitive damages and attorney fees on a willful violation.
- **ICRAA actual and punitive damages.** Cal. Civ. Code § 1786.50 -- with attorney fees.
- **UCL injunctive relief and restitution.** Cal. Bus. & Prof. Code § 17200 -- including a court order requiring Pilot to cease this practice statewide.

IV. THE DAMAGES MODEL

The following is a conservative, plaintiff-side damages calculation. The numbers are anchored to documentary evidence (the offer letter establishing the wage rate; the paystubs establishing the hourly schedule; the offer letter establishing the $500 sign-on bonus and benefit eligibility).

Category	Calculation	Amount
Past lost wages	Jan. 23, 2026 - June 1, 2026 (~18 wks × 40 hrs × $24)	$ 17,280
Future lost wages (mitigation)	24-month recovery to comparable wage (low end)	$ 99,840
Lost $500 sign-on bonus	Forfeited at 90-day milestone	$ 500
Lost benefits value	Health/Dental/Vision/Life/401(k) match (~25% of wages)	$ 29,280
	Subtotal economic damages	**$ 146,900**
Treble multiplier	Pen. Code § 290.46(l) - actual damages × 3	**$ 440,700**
Civil penalty	Pen. Code § 290.46(k) - maximum per violation	$ 25,000

Category	Calculation	Amount
Emotional distress / IIED	Holiday-season termination of financially desperate employee	$ 75,000 - $250,000
Punitive damages exposure	Civ. Code § 3294 - willful violation by sophisticated employer	$ 100,000 - $500,000+
Attorney fees on judgment	Pen. Code § 290.46(l); 15 U.S.C. § 1681n; ICRAA	to be determined
	JURY VERDICT EXPOSURE RANGE	**$ 640,700 - $1,215,700+**

The damages model above does *not* account for the FCRA statutory damages on a per-violation basis, the ICRAA punitive exposure, the UCL restitution claim, prejudgment interest, costs, or the mandatory attorney fee award -- all of which add further to Pilot's exposure.

V. WHY SETTLEMENT NOW IS IN PILOT'S INTEREST

Beyond the raw damages exposure, three additional factors counsel pre-filing resolution:

1. The smoking gun is in your file, not mine. The Post-Adverse Action Notice was generated by Pilot's own background-check department on Pilot's own letterhead, sent from a Pilot email address. There is no theory under which Pilot did not use registry information for employment. The document *says it did*. Discovery will only make this worse for the Company, not better.

2. The case will create public precedent. California Penal Code § 290.46(j)(2)(E) is rarely litigated in the employment context precisely because most employers know not to put the violation in writing. Pilot did. A published verdict or opinion in *Newanforbi v. Pilot* becomes permanent training material for every plaintiffs' employment lawyer in California, with Pilot's name on it.

3. The collateral exposure is institutional. If Pilot uses this same Checkr-driven process at any of its other California locations -- and a corporate background-check department generally does -- the UCL injunctive-relief count, the discovery into Pilot's nationwide adverse-action data, and the possibility of class certification all transform this from a single-plaintiff case into a multi-million-dollar institutional risk. Pre-filing resolution eliminates that risk.

VI. THE DEMAND

To resolve all claims arising out of the matters described herein without litigation, I demand the following:

SETTLEMENT PAYMENT: $475,000.00

(Four Hundred Seventy-Five Thousand U.S. Dollars)

Payable by check to: BRENDAN NGWA NFORBI

Plus the following non-monetary terms, each of which is material to settlement:

(a) Internal policy correction. Written confirmation, signed by an officer of Pilot, that the Company has issued binding written guidance to its background-check department, HR, and recruiting personnel in California that California Sex Offender Registry information shall not be used as the basis for any employment action.

(b) Removal from internal records. Confirmation that all references to the December 30, 2025 adverse action have been expunged from my employment file, including in the Click Boarding and PILOT_PRD_HCM systems, and that my separation has been recoded as eligible for rehire.

(c) Neutral reference. A written commitment that all future employer inquiries regarding my employment at Pilot will be answered with dates of employment, position held, and "eligible for rehire" only.

(d) Withdrawal of the December 30, 2025 notice. Written withdrawal of the Post-Adverse Action Notice, signed by the Chief Legal Officer or designee.

(e) Confidentiality of settlement amount only. The fact of settlement and the non-monetary terms may be disclosed; only the dollar amount will be confidential. I will not agree to a non-disparagement clause or any release broader than the claims arising from the December 30, 2025 adverse action.

(f) No re-tender of employment required. Settlement is in lieu of reinstatement.

VII. FORMAL LITIGATION HOLD NOTICE

This letter operates as formal notice of Pilot's duty to preserve evidence under *Cedars-Sinai Medical Center v. Superior Court* (1998) 18 Cal.4th 1, and applicable federal authorities. Pilot is directed to immediately suspend any auto-deletion, archive-purge, or document-retention policies that would result in the destruction, alteration, or loss of any of the following:

- All documents, e-mails, system entries, and communications concerning my application(s), recruitment, offer, hire, onboarding, employment, background check, adverse action, and separation, including but not limited to the Click Boarding system, the PILOT_PRD_HCM HR system, the SmartRecruiters platform, the Checkr candidate portal, the backgroundcheck@pilottravelcenters.com mailbox, and all related backup tapes, archives, and audit logs;
- All policies, procedures, training materials, scripts, decision rubrics, automated workflows, and adjudication matrices used by Pilot's background-check department for California candidates, in effect at any time between January 1, 2024 and the present;
- All communications between Pilot and Checkr, Inc. concerning California candidates flagged with sex offender registry hits;
- All data identifying every California candidate or employee against whom Pilot took adverse action between January 1, 2024 and the present based, in whole or in part, on sex offender registry information.

Failure to preserve will be the subject of a CCP § 2023.030 spoliation motion and a request for adverse-inference instruction at trial.

VIII. SETTLEMENT-COMMUNICATION PROTECTION

This letter is offered in compromise of a disputed claim and is inadmissible to prove liability under California Evidence Code section 1152 and Federal Rule of Evidence 408. The factual recitations are based on Pilot's own documentary record; nothing in this letter limits my right to introduce the underlying *documents* as evidence at trial.

IX. DEADLINE FOR RESPONSE

Pilot must respond in writing or by email to **bnn.cdl@gmail.com**, on or before **5:00 p.m. Pacific Time on June 15, 2026**. Absent a written or e-mail acceptance of these terms, or a good-faith counter-offer, by that deadline, the enclosed Draft Complaint will be filed in the San Joaquin County Superior Court without further notice.

I am willing to participate in a single, good-faith mediation session within the deadline window if Pilot's counsel believes it would expedite resolution. I am not willing to extend the deadline absent that commitment.

X. RESERVATION OF RIGHTS

Nothing in this letter waives, releases, or limits any claim, right, or remedy. All claims, rights, and remedies are expressly reserved. This letter is not, and shall not be construed as, an offer to settle for any amount less than that stated herein, nor as an admission of fact, law, or comparative fault.

I look forward to your prompt response.

Very truly yours,

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BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Pro Per

Enclosure: Exhibit A — Draft Complaint for Damages (Newanforbi v. Pilot Travel Centers LLC), filed-ready format, 28 pages.

cc (by e-mail): amber.peters@pilottravelcenters.com; backgroundcheck@pilottravelcenters.com; Pilot Travel Centers LLC Legal Department; CT Corporation System (California Registered Agent).

Method of delivery: (1) U.S. Certified Mail, Return Receipt Requested, to the Knoxville, TN address; (2) Personal delivery via registered process server to the California Registered Agent (CT Corporation System); (3) Electronic mail to each of the e-mail addresses identified in the addressee block above.